

Apex Institute of Technology & Higher Sciences

Standing Charter of the Proctorial Board and Senate Committees (Volume IX)

Section 1: Jurisdictional Foundations and Proctorial Powers

Clause 1.1: Establishment of the Proctorial Board

The Proctorial Board is constituted by the Board of Governors as the primary investigative and disciplinary authority for non-academic misconduct. The Board exercises campus-wide jurisdiction over student behavior in university precincts, student halls of residence, digital institutional networks, and official off-campus field excursions.

Clause 1.2: Investigative Authorities and Summons

The Chief Proctor and designated Deputy Proctors are empowered to issue formal summons, interview witnesses, subpoena campus security footage, inspect digital network logs, and conduct evidentiary hearings regarding allegations of misconduct. Any student who fails to appear before a proctorial summons without verified medical incapacitation shall be subject to immediate interim suspension.

Clause 1.3: Summary Jurisdiction for Minor Infractions

Deputy Proctors may exercise summary jurisdiction over minor behavioral infractions occurring within their geographical zones, including smoking violations, minor property noise nuisance, and unauthorized parking. Summary penalties are capped at a \$100 fine or twenty (20) hours of supervised campus community service.

Section 2: Disciplinary Hearings and Student Rights

Clause 2.1: Principles of Natural Justice

Every student charged with a disciplinary violation is guaranteed the fundamental protections of natural justice:

- (a) The right to receive a written Statement of Charges specifying alleged violations at least five (5) working days prior to any formal hearing.
- (b) The right to review all documentary and video evidence assembled by the Proctorial Office.
- (c) The right to present oral testimony, submit witness statements, and introduce exculpatory material.
- (d) The right to be accompanied by a student peer advisor or member of the campus student legal clinic (formal external legal counsel is not permitted to plead before the internal board).

Clause 2.2: Standard of Proof

The standard of proof applied in all proctorial and senate disciplinary hearings is the preponderance of probabilities; the board determines whether it is more likely than not that the contested incident occurred.

Section 3: Disciplinary Sanction Hierarchy

Clause 3.1: Authorized Penalties and Sanctions

Upon a formal determination of misconduct, the Proctorial Board may impose one or more of the following sanctions:

- (a) Formal Written Reprimand placed in the student's confidential registry file.
- (b) Disciplinary Restitution and monetary fines to compensate for physical damage to university property.
- (c) Restriction of Campus Privileges (including bar on vehicle registration, removal from student societies, or exclusion from licensed social facilities).
- (d) Residential Hall Eviction (permanent or temporary removal from on-campus housing).
- (e) Disciplinary Suspension from the Institute for a period spanning from one semester to two full academic years.
- (f) Permanent Expulsion with irrevocable forfeiture of matriculation standing.

Section 4: Standing Powers of the Academic Standing & Petitions Committee

Clause 14.1: Authority and Composition

The Academic Standing & Petitions Committee is a statutory committee of the Academic Senate, chaired by the Vice-Provost for Academic Affairs and comprising five tenured department chairs and two elected student senate representatives.

Clause 14.2: General Waiver Authority

The Committee is invested with executive discretion to evaluate extraordinary hardship petitions regarding degree completion hurdles, retroactive term withdrawals, and curriculum substitution requests where strict application of standard statutes would produce grave injustice.

Clause 14.3: Special Jurisdiction on Examination Attendance Dispensations [PLANTED CONTRADICTION 1C]

The Academic Standing & Petitions Committee possesses sole, plenary, and unappealable jurisdiction to grant examination sitting dispensations to any enrolled matriculated student whose course attendance stands between 50.0% and 74.9%, upon formal petition submitted to the Committee at least seven (7) calendar days prior to the commencement of the examination period. The Committee may mandate alternative remedial assessments, capstone essays, or oral vivas in lieu of standard physical attendance contact hours. Decisions rendered under this clause are final and binding across all academic faculties.

Section 5: Appeals Procedure and Appellate Senate Standing Board

Clause 18.1: Grounds for Formal Appeal

A student subjected to suspension, expulsion, or significant financial sanction may lodge an appeal to the Appellate Senate Standing Board within fourteen (14) calendar days of receiving written notice of sanction. Appeals are limited strictly to three legal grounds:

- (a) Procedural irregularity substantial enough to have prejudiced the hearing outcome.
- (b) Emergence of new material evidence that was genuinely unavailable at the time of the original inquiry.
- (c) Gross disproportion of the sanction relative to the severity of the established infraction.

Clause 18.2: Appellate Rulings and Finality

The Appellate Senate Standing Board reviews the transcribed hearing records and submissions. The Board may affirm the original penalty, reduce the severity of the sanction, or order a de novo re-hearing before an alternate panel. Rulings of the Appellate Board are final and unappealable within the Institute.

Section 6: Record Retention, Expungement, and Restorative Measures

Clause 22.1: Disciplinary Record Retention

Records of disciplinary admonitions and minor fines are maintained confidentially in the Office of the Proctor for a duration of five (5) years following the student's graduation, after which they are systematically purged. Records of suspensions and expulsions remain a permanent part of the archival institutional record.

Clause 22.2: Petition for Disciplinary Record Expungement

A student who received a single Level 1 disciplinary sanction may petition the Proctorial Board for record expungement during their final semester of study, provided the student has completed twenty-five (25) hours of certified campus service and sustained no further disciplinary complaints.